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Case Number: 25STCV09493 Hearing Date: July 8, 2026 Dept: 515

NATURE OF PROCEEDINGS: Hearing on Defendant's Motion
for Summary Judgment, or in the Alternative, Summary Adjudication

The Motion for Summary Judgment filed by BMW of North America, LLC is denied. The alternative motion for summary adjudication of the first and third causes of action is denied.

BACKGROUND

Plaintiff Vera Nahapetyan (Plaintiff) filed this action against BMW of North America, LLC (BMW) and FAA Beverly Hills, Inc., doing business as Beverly Hills BMW (collectively "Defendants"), arising from her acquisition of a 2024 BMW M4 (the Subject Vehicle) on July 10, 2023, for which BMW issued a written warranty.

Plaintiff alleges that the Subject Vehicle developed defects in its suspension, steering, engine, electrical, emission, and transmission systems, and that Defendants failed to repair those defects after a reasonable number of attempts. (Compl. ¶¶ 11, 28, 34.)

The causes of action are: (1) breach of express warranty under the Song-Beverly Consumer Warranty Act; (2) breach of the implied warranty of merchantability under the Song-Beverly Consumer Warranty Act; (3) violation of Civil Code section 1793.2, subdivision (b); and (4) negligent repair. The first three causes of action are alleged against BMW, and the fourth is alleged against Beverly Hills BMW.

BMW filed a Motion for Summary Judgment, or in the

alternative, Summary Adjudication. Plaintiff filed an Opposition.

REQUEST FOR JUDICIAL NOTICE

Plaintiff requests judicial notice of an amended order denying a motion in limine in *Pate v. BMW of North America, LLC* (C.D.Cal., No. 2:21-cv-04915-KS). The Court grants the request as to the existence of the order, but not as to the truth of any factual finding or legal conclusion stated in it. (Evid. Code, § 452, subd. (d); *Sosinsky v. Grant* (1992) 6 Cal.App.4th 1548, 1564-1565.) As an order of a federal district court, it does not bind this Court and is considered only for whatever persuasive value it may have. (See *Aleman v. Airtouch Cellular* (2012) 209 Cal.App.4th 556, 576, fn. 8. [“Although not binding, unpublished federal district court cases are citable as persuasive authority”].)

LEGAL STANDARD

A defendant moving for summary judgment must show that one or more elements of a cause of action cannot be established or that there is a complete defense to it. (Code Civ. Proc., § 437c, subd. (p)(2).) The motion must be granted if the papers show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law. (Code Civ. Proc., § 437c, subd. (c).)

A defendant meets its initial burden by presenting evidence, and not by simply arguing that the plaintiff lacks evidence. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 854 (*Aguilar*).) If the defendant carries that burden, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists. (Code Civ. Proc., § 437c, subd. (p)(2).) The Court strictly construes the moving party's evidence and liberally construes the opposing party's evidence, resolving any doubts in favor of the opposing party. (*Aguilar, supra*, 25 Cal.4th at p. 843.)

A motion for summary adjudication proceeds under the same standard and may be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty. (Code Civ. Proc., § 437c, subd. (f)(1).)

ANALYSIS

BMW challenges two of the four causes of action on two grounds: (1) the first cause of action for breach of express warranty fails because every defect presented under warranty was either repaired in a single visit or found to be operating as designed, so no nonconformity was subject to more than one repair opportunity; and (2) the third cause of action for violation of section 1793.2, subdivision (b), fails because BMW promptly commenced all repairs, because a violation of the 30-day provision would not entitle Plaintiff to restitution or replacement, and because Plaintiff has no evidence of damages caused by any violation. BMW does not address the second cause of action for breach of implied warranty.

I. Summary Judgment

BMW is not entitled to summary judgment because its motion does not dispose of the entire action. A motion for summary judgment is directed at the entire action against a party. (Code Civ. Proc., § 437c, subd. (a)(1).) BMW's motion addresses only the first and third causes of action. It offers no argument or evidence directed at the second cause of action for breach of implied warranty. Because the motion cannot resolve every cause of action against BMW, the Court treats it as a motion for summary adjudication of the first and third causes of action. (Code Civ. Proc., § 437c, subd. (f)(1).)

Plaintiff also argues that the motion is an improper second motion for summary judgment. (Opp. at pp. 3-4.) A party may not move for summary judgment or for adjudication on issues asserted in a prior motion that the court denied, absent newly discovered facts or a change in the law. (Code Civ. Proc., § 437c, subd. (f)(2).) That bar applies only where the court previously denied a motion on these issues on the merits. The record does not show a merits denial. By Plaintiff's own account, BMW's earlier motion, brought on or about January 22, 2026, was challenged as improperly noticed under section 437c, subdivision (a)(2), and was not decided on the merits. On this record, the present motion is not barred, and the Court reaches its merits.

II. First Cause of Action

for Breach of Express Warranty

BMW argues that the first cause of action fails because each defect was either repaired in a single visit or found to be operating as

designed, so no nonconformity was ever subject to more than one repair attempt.

The Song-Beverly Consumer Warranty Act requires a manufacturer that is unable to repair a new motor vehicle to conform to the applicable express warranties, after a reasonable number of attempts to replace the vehicle or make restitution. (Civ. Code, § 1793.2, subd. (d)(2).) To establish a breach of the express warranty, a plaintiff must prove that (1) the vehicle had a nonconformity covered by the express warranty that substantially impaired its use, value, or safety; (2) the vehicle was presented to an authorized representative of the manufacturer for repair; and (3) the manufacturer or its representative did not repair the nonconformity after a reasonable number of repair attempts. (*Donlen v. Ford Motor Co.* (2013) 217 Cal.App.4th 138, 152.)

A single repair opportunity does not trigger the remedy. In *Silvio v. Ford Motor Co.* (2003) 109 Cal.App.4th 1205 (*Silvio*), the buyer delivered his vehicle for one repair attempt and then filed suit. The Court of Appeal held that the statute's reference to repair attempts, stated in the plural, requires more than one opportunity, and that a manufacturer is not obligated to replace a vehicle or make restitution when it has had only one opportunity to repair it. (*Id.* at p. 1208.)

Whether a manufacturer has been afforded a reasonable number of repair attempts is ordinarily a question of fact. (*Robertson v. Fleetwood Travel Trailers of California, Inc.* (2006) 144 Cal.App.4th 785, 799 (*Robertson*).) A nonconformity is not confined to a single component; it may encompass an entire complex of related conditions, and whether a group of symptoms constitutes one nonconformity or several is itself a question for the trier of fact. (*Id.* at p. 801, fn. 11.)

Each presentation of the vehicle for repair counts as a repair opportunity, whether or not the manufacturer's agents perform work or succeed in duplicating the problem. In *Oregel v. American Isuzu Motors, Inc.* (2001) 90 Cal.App.4th 1094 (*Oregel*), the court explained that the only affirmative step the Act imposes on a consumer is to permit the manufacturer a reasonable opportunity to repair the vehicle, and that whether the manufacturer's agents take advantage of that opportunity, or are unable to find the defect, are matters for which the consumer is not responsible. (*Id.* at pp. 1103-1104.) The consumer need not prove the cause of the defect. (*Id.* at p. 1102, fn. 8.)

Here, BMW's own separate statement establishes that Plaintiff presented the Subject Vehicle for repair on ten occasions between July 2023 and June 2025. (UMF Nos. 4-13.) That record far exceeds the single repair opportunity at issue in *Silvio*.

BMW characterizes each visit as a discrete defect that was separately resolved, so that no individual nonconformity received more than one attempt. Whether the recurring symptoms are discrete defects or manifestations of a single complex of related conditions is the factual question that Robertson commits to the trier of fact. Plaintiff's expert, Darrell Blasjo, reviewed the repair records and opines that the symptoms are not separate, isolated defects but interrelated failures within the vehicle's integrated electronic and control architecture, because modern BMW vehicles rely on shared sensor inputs for braking, stability, traction, and acceleration management. (Blasjo Decl. ¶¶ 12, 32.) He further opines that the defects were not repaired within a single opportunity or within a reasonable number of opportunities. (Blasjo Decl. ¶ 31.)

That some visits ended with a technician unable to duplicate the concern or reporting that the vehicle operated as designed does not remove those presentations from the count. Under *Oregel*, a presentation counts as a repair opportunity even when the manufacturer's agents perform no successful repair. (*Oregel*, *supra*, 90 Cal.App.4th at pp. 1103-1104.)

Accordingly, BMW has not shown that the failure to repair element cannot be established, and a triable issue of material fact remains. The motion for summary adjudication of the first cause of action is denied.

III. Third Cause of Action for Violation of Section 1793.2, Subdivision (b)

BMW argues that the third cause of action fails because it promptly commenced every repair, because a violation of the 30-day provision does not entitle Plaintiff to restitution or replacement, and because Plaintiff has no evidence of damages caused by any violation. BMW adds that the out-of-service periods it addresses were partially due to the diagnosis of concerns that its technicians could not verify.

Section 1793.2, subdivision (b), provides that, where

warranty service or repair is required and unless the buyer agrees in writing to the contrary, the goods shall be serviced or repaired to conform to the applicable warranties within 30 days. (Civ. Code, § 1793.2, subd. (b).)

A violation of that requirement gives rise to damages under Civil Code section 1794, which include the cost of repairs necessary to make the goods conform, together with incidental and consequential damages. (Civ. Code, § 1794, subd. (b)(2).) A failure to complete warranty repairs within 30 days is independently actionable and supports recovery of the incidental and consequential damages caused by the delay, even where the underlying defect did not substantially impair the vehicle's use, value, or safety. (Ramos v. Mercedes-Benz USA, LLC (2020) 55 Cal.App.5th 220.)

BMW has not met its initial burden. A defendant moving on the ground that the plaintiff lacks evidence must present evidence that the plaintiff does not possess, and cannot reasonably obtain, evidence of the element at issue. (Aguilar, supra, 25 Cal.4th at p. 854.) BMW's separate statement asserts only that Plaintiff has produced no evidence of damages resulting from a failure to complete repairs within 30 days. (UMF No. 14.) That assertion is argument, not evidence. BMW identifies no discovery response, deposition testimony, or other item in the record showing that Plaintiff lacks and cannot obtain evidence of damages. The burden, therefore, never shifted to Plaintiff.

Even if the burden had shifted, a triable issue would remain. BMW's own separate statement establishes that the Subject Vehicle was out of service for 36 days in connection with the repair visit beginning January 31, 2024, a fact Plaintiff does not dispute. (UMF No. 6.) A single out-of-service period exceeding 30 days would permit a reasonable jury to find that BMW did not complete warranty repairs within the time period outlined in section 1793.2, subdivision (b). BMW's contention that the out-of-service time reflected the diagnosis of concerns that its technicians could not verify does not resolve the question of whether conforming repairs were required during that period and whether the delay caused Plaintiff compensable harm, which are matters for the trier of fact. Together with the recurring conditions documented throughout the repair history, the undisputed 36-day period is sufficient to raise a triable issue.

BMW also contends that a violation of the 30-day provision would not entitle Plaintiff to restitution or replacement. Even accepting that

a bare violation of section 1793.2, subdivision (b), unaccompanied by a substantial nonconformity, does not support the replacement-or-restitution remedy (see Ramos, supra, 55 Cal.App.5th 220), that limitation defines the available remedy; it does not dispose of the cause of action. Because Plaintiff may still recover the incidental and consequential damages caused by any delay, the third cause of action is not resolved in its entirety, and summary adjudication is unavailable.

Accordingly, the motion for summary adjudication of the third cause of action is denied.

CONCLUSION

The Motion for Summary Judgment filed by BMW of North America, LLC is denied. The alternative motion for summary adjudication of the first and third causes of action is denied.